

CONTRACT RATES OFFER 2025

The following are the conditions for the rates to be signed between **Enashipai Resort & Spa** and **Bountiful Safaris**. The Company will benefit from the following preferential rates (Single/Double and are in USD)

Duration	Single room (Usd)	Double room (Usd)
HIGH SEASON 2nd January to 31st March 2025 1st July to 31st October 2025 23rd December 2023 to 1st January 2026	312	438
LOW SEASON 1st April to 30th June 2025 1st November to 22nd December 2025	260	352
ONE BEDROOM SUITE (HONEYMOON SUITE) 2nd January 2025 to 1st January 2026	380	490

The rates quoted are: -

- Inclusive of 16% VAT, 2% training levy & 7% service charge.
- Breakfast, Lunch & Dinner (Full Board)
- Internet connectivity in all rooms
- The rates are NET
- Apply only if a bonafide Tours & Safaris Company

a. Group Discounts:

In addition to above rates, group discounts will be applicable as follows:

- 20-39 Pax - 5% off applicable contract rates
- 40-59 Pax - 7% off applicable contract rates
- 60-79pax - 10% off applicable contract rates

(Group discounts are Net and will not be applicable on Special Rates and normal series/block bookings. One free Single bed for 15 paying Pax subject to a maximum of 2 Pax.)

CASUAL MEAL RATES

- Breakfast- 35Usd
- Lunch- 40Usd
- Dinner- 45Usd

NB: The above rates are not applicable during festive season.

CONFERENCE PACKAGE

There is an additional supplement of 50USD per person for conference.

SPECIAL REMARKS

1. Block Bookings and Tour Series

- For tour series/block bookings where the number of Adults Pax is 7 and above we shall treat this as a group.
- For groups utilizing 15 paying Pax per night or more, the 16th bed will be provided on complimentary basis subject to a maximum of 2 beds.

2. Group Rooming List

- A complete rooming list must be provided 14days before arrival.
- Should the above terms not be met, there will be an automatic release.

3. FIT Booking Guarantee

- Company credit card number with authorization to run the card, cheque or cash deposited into the Enashipai Resort & Spa account and the deposit slip faxed or emailed scanned copy sent to the Resort reservations at least 7 days before check in.
- If the company does not have a credit card and the reservation is made within 7 days to arrival, the reservation remains tentative i.e. 6pm release. In the instance where the company has credit facilities with Enashipai Resort & Spa, and the account has to be billed back, a voucher has to be sent the reservations within 48 hours of making the booking.

4. Advance Deposit & Payment

15 Rooms and above-25% on confirmation

-Further 50% with rooming list (two weeks prior to arrival)

-Final 25%, 2 days prior to arrival.

15 Rooms and below -50% on confirmation

-50%, 2 days prior to arrival

5. Arrival and check-out times

Daily check-in is from 2.00 pm on expected date of arrival. Check-out is at 10:00am on the date of departure. Special consideration may be made for extended departure time subject to availability.

CONDITIONS

1. Sales Allotments % Release Period-You are to submit your sales position to the Reservations Executive within 60 days during peak, 50 days during high season and 35 days during low season.

2. Child Policy

For Child(ren) accompanying adult(s) in same room:

- 0-3years sharing with adults-No Charge
- 4 years to 12years sharing with 1 or 2 adults- pays 25% of applicable double room rate per child pegged on the season.
- 4-12-year-old one child in own room is 75% of adult single rate.
- 4-12-year-old two children in their own is 75% of adult double rate.
- 13 years and above is treated as an adult and full rate apply.

3. Tour Leader

Complimentary accommodation will be granted to Bona Fide Tour Leaders on the basis of 1pax 15 paying Pax, provided it is pre-booked and confirmed. This applies for a maximum of 2 tour leaders.

4. Ad Hoc Groups Booking

An Ad Hoc Group Booking is one that is not already charted at our reservation's office as part of your allocations for the year. For such bookings we will require payment of a 25% non-refundable deposit within 14 days from the confirmation date stamped on your booking voucher by our reservation's office. Where such a deposit is not received by the 14th day a notification shall be sent to you after which on the 15th day the rooms held will be automatically released. A group is defined seven paying guests travelling together.

5. Applicability: This contract is valid for non-residents only and for leisure business only. Valid picture Identification will be required at check-in. These rates are not for onward distribution 3rd party on-line travel/hotel booking websites. For non-residential conference contact us for rates.

6. The above rates do not apply to conference delegates whose special rates should be obtained during each conference.

7. Cancellations and No-Show

- a. 15% of the rate applicable per bed night will be charged for rooms cancelled or reduced in number:
 - i. For Low season between 35 and 14 days from noon on the date of accommodation
 - ii. For High season between 50 and 40 days from noon on the date of accommodation
 - iii. For Peak season between 60 and 50 days from noon on the date of accommodation
- b. 33% of the rate applicable per bed night will be charged for rooms cancelled or reduced in number:
 - i. For Low season between 14 and 2 days from noon on the date of accommodation
 - ii. For High season between 40 and 20 days from noon on the date of accommodation
 - iii. For Peak season between 50 and 30 days from noon on the date of accommodation
- c. 100% of the rate applicable per bed night will be charged for rooms cancelled or reduced in number:
 - i. For Low season within 48 hours from noon on the date of accommodation
 - ii. For High season within 20 days from noon on the date of accommodation
 - iii. For Peak season within 30 days from noon on the date of accommodation

8. a) Payment: (a) Cash_____ (b) Credit: N/A

A statement will be raised monthly and payment is due 14 days from the date of statement. In default, a compound interest of not less than 3% per month will be charged. Any dispute regarding an invoice must be received by Enashipai Resort & Spa accounts Department within 14 days of the issue of the invoice. Only the amount in dispute may be deducted from the invoice, and the balance of payment due must be paid within the specified time limit after the complaint has been settled. Default of undisputed payment may result in the Agent's clients being refused admittance to the Resorts and future confirmed bookings' being released without notice until payment is made and Enashipai Resort & Spa at its discretion may demand payment in advance or terminate this agreement forthwith. Credit facilities are granted at the entire discretion of Enashipai Resort & Spa and may be withdrawn without notice.

b) Returned Cheques: Should a cheque issued by the agent be returned by the bank for any reason, the agent shall replace the cheque within forty-eight (48) hours with certified funds. Additionally, the Agent shall pay the Returned Cheque Fee charged by the bank. Failure to replace the returned cheques will constitute a default of this agreement.

The present offer does not constitute a credit facility.

9. Variation in rates, and/or taxes and/or service charge

Enashipai Resort and Spa may at its discretion, by not less than one month's notice in writing to the Operator alter the contracted rates. In the event of any appreciation of the Kenya shilling of over 5% vis-à-vis the currency in which the contract is drawn or any changes in government taxes, training levy or service charge, Enashipai Resort and Spa reserves the right to adjust these rates accordingly, from the date of such changes and/or any variations.

10. Duration

The above rates are offered to the **Company** by the **Resort** to apply from the date of this letter until 31st December 2025 subject to availability. The rates will **NOT** apply over blocked-out dates arising from, normal repair and maintenance work on rooms, International Conference, Incentive groups or special events. The Resort will endeavor to communicate such dates in advance to the company. The present offer is not retroactive.

11. Christmas & Easter Supplements – minimum stay 3 nights

The rates are not applicable during holiday seasons (Christmas-23rd Dec to 1st Jan 2026 and Easter). A supplement of USD.50 per person is applicable on the contracted rate and 50% of the supplement for children above 3 years will be applicable.

12. Reservation

The **Resort** recommends that advance reservations be made in order to ensure availability on check-in and other arrival procedures. The offer does not guarantee the availability of rooms but any request during heavily booked periods will be treated with priority. Official company voucher or LPO duly approved must support all reservations made.

13. Changes to Offer

This offer can only be changed or terminated in writing by giving a 30 days' notice. In case of force majeure or in the event of additional taxes and levies imposed by the Government, the Resort reserves the right to amend the rates accordingly.

14. Disclaimer

In the event of any act over which the **Resort** has no control (which shall include any directive from the Government of Kenya) preventing the **Resort** from complying in whole or part with its obligations under this offer, then the **Resort** shall be exonerate from liability whilst such event(s) pertain. However, the **Resort** will endeavor to make all reasonable efforts to find alternative accommodation.

The person executing this contract on behalf of **Enashipai Resort & Spa** represents and warrants that he/she has authority to do so on behalf of the company, and has read and understood the terms and conditions herein; hence assumes responsibility for all dealings between the Company and the Resort.

The Operator confirms and agrees that this Agreement is confidential to the Operator and Enashipai Resort and Spa and the Operator shall not in any circumstances divulge or permit to divulge this agreement or its contents to any other person.

Amendments to this agreement shall be valid only if made in writing and signed by the Operators and Enashipai Resort and Spa. The waiver of any of the terms on any occasion shall not be deemed a waiver of such terms and conditions for any further occasion. All notices to be served shall be sent to the address of the party to be served as specified herein. This agreement shall be governed by the laws of the Kenya.

Towards the end of each calendar year, the volume of business of each **Company** will be evaluated in comparison to the expected number of Room Nights produced. The **Company** will not be liable for any shortfall in business volume, however, the **Resort** reserves the right not to renew the present offer and/or to do so based on the lower volume, for preferential STO rate the following year.

Date: 13/11/2024

Date: _____